

		exists in encouraging settlement of legal disputes and keeping material terms of settlement confidential that overcomes the right of public access to the information contained in the subject documents. Defendant DWT also has shown that the right supports the sealing of the documents. Defendant DWT has established that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed, that the proposed sealing is narrowly tailored, and there are no less restrictive means to achieve the overriding privacy interest. In addition, the requirements of Rule 2.551 have been met. No other party to this action or third-party has opposed the motion or shown that the requirements of Rule 2.550 or Rule 2.551 have not been met. Defendant DWT shall give notice of these rulings.
7	Parker vs. Harris 30-2024-01375596	<u>Motion for Attorney's Fees</u> Cross-Defendant Matthew Parker's Motion for Attorney's Fees is GRANTED. Cross-Complainant Nathan Harris and Album Creative Studios Inc. are ORDERED to pay to Cross-Defendant Matthew Parker reasonable attorney's fees in the amount of \$12,939.55 and costs in the amount of \$192.20 within 30 days of service of the notice of ruling. <u>Pending Motion</u> Cross-Defendant Matthew Parker (Cross-Defendant Parker) moves for an award of attorney fees in the amount of \$21,623 and costs in the amount of \$192.20 pursuant to the Anti-SLAPP statute, Civil Procedure Code section 425.16. <u>Basis for Award of Attorney's Fees</u> Civil Procedure Code section 425.16 states that "a prevailing defendant on a [Anti-SLAPP] special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ.

		Proc., § 425.16, subd. (c)(1).) Under this provision, “any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131.) The purpose of the statute is “compensating the prevailing defendant for the undue burden of defending against litigation designed to chill the exercise of free speech and petition rights.” (<i>Barry v. State Bar of California</i> (2017) 2 Cal.5th 318, 328.) <u>Prevailing Party</u> “The term ‘prevailing defendant,’ as used in section 425.16, subdivision (c)(1), is not defined, and it is unstated whether a defendant who prevails on some, but not all, of the claims challenged in his or her anti-SLAPP motion is entitled to fees and costs. (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 232.) “But as a general rule, a defendant who prevails in part in bringing a special motion to strike is entitled to fees and costs, subject to the trial court's determination of the appropriate amount awardable based upon the defendant's partial success.” (<i>Ibid.</i>) Therefore, “a party need not succeed in striking every challenged claim to be considered a prevailing party within the meaning of section 425.16.” (<i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 339.) However, this rule is not absolute. A party who partially prevails on an anti-SLAPP motion is not deemed to be the prevailing party where “the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of a trial court.” (<i>Id.</i> at p. 340.) <u>Dismissal of Claims</u> A plaintiff who dismisses its claims after an anti-SLAPP motion is filed may be liable for fees. (See, e.g., <i>Ross v. Seyfarth Shaw LLP</i> (2023) 96 Cal.App.5th 722, 733.) However, the authorities are split on the issue of the effect of the dismissal.
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		(Compare <i>Coltrain v. Shewalter</i> (1998) 66 Cal.App.4th 94, 107 with <i>Tourgeman v. Nelson & Kennard</i> (2014) 222 Cal.App.4th 1447, 1457; <i>Liu v. Moore</i> (1999) 69 Cal.App.4th 745, 752-753.) The court in <i>Coltrain v. Shewalter</i> held that dismissal creates a rebuttable presumption that the defendant would have prevailed, and the plaintiff may overcome this presumption by showing she or he dismissed for other reasons. (<i>Coltrain v. Shewalter, supra</i>, (1998) 66 Cal.App.4th at p. 107.) Under this approach, the court need not consider the merits of the anti-SLAPP motion. (See <i>ibid.</i>) The courts in <i>Tourgeman v. Nelson & Kennard</i> and <i>Liu v. Moore</i> expressly rejected this approach, holding that "a determination of whether a defendant would have prevailed on its motion to strike is an essential prerequisite to an award of attorney fees and costs pursuant to section 425.16, subdivision (c)(1)." (<i>Tourgeman v. Nelson & Kennard, supra</i>, 222 Cal.App.4th at p. 1457; see <i>Liu v. Moore, supra</i>, 69 Cal.App.4th at pp. 752-753 [holding that until court determines that defendant would have prevailed, defendant is not entitled to fees and costs under section 425.16].) In this case, while Cross-Defendant Parker's Anti-SLAPP Motion was pending, Cross-Complainant Album Creative Studios, Inc. (Cross-Complainant Album) dismissed its cross-claims, which included the 2nd, 3rd, 6th, and 7th Causes of Action of the Cross-Complaint. (See ROA #69.) This dismissal mooted 5 of the 9 allegations or claims that the Anti-SLAPP Motion sought to strike. Thus, under approach in <i>Coltrain v. Shewalter</i>, this creates a rebuttable presumption that Cross-Defendant would have prevailed. Cross-Complainants have not filed an opposition or otherwise responded to this motion. Therefore, they have failed to rebut the presumption that Cross-Defendant Parker would have prevailed on the anti-SLAPP motion. Under the approach favored by <i>Tourgeman v. Nelson & Kennard</i> and <i>Liu v. Moore</i>, the court finds that Paragraphs 56(c), 58, 85(d), and 85(e), as well of as the entire 3rd Cause of Action of the Cross-Complaint would have been stricken.
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		These portions of the Cross-Complaint relate to Cross-Defendants' alleged registration of trademarks and tradenames belonging to Cross-Complainants, which is a protected activity under the Anti-SLAPP Statute. (See <i>Mindys Cosmetics, Inc. v. Dakar</i> (9th Cir. 2010) 611 F.3d 590, 596.) Further, Cross-Complainants would have been unlikely to prevail with respect to the above allegations and claim. <u>Anti-SLAPP Motion</u> In addition, the court ordered that two additional allegations, in Paragraphs 51(f) and 79 of the Cross-Complaint, be stricken as part of the Anti-SLAPP Motion. Thus, Cross-Defendant Parker would have prevailed or did prevail with respect to 7 of the 9 allegations or claims that he moved to strike, and also obtained the voluntary dismissal of 4 causes of action. Considering all of the factors enumerated above, the court finds that Cross-Defendant Parker was the prevailing defendant on the Anti-SLAPP Motion. <u>Lodestar Calculation of Attorney's Fees</u> The lodestar method for calculating attorneys' fees applies to any statutory attorney's fees award, unless the statute authorizing the award provides for another method of calculation. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; <i>K.I. v. Wagner</i> (2014) 225 Cal.App.4th 1412, 1425.) When using this method, the court begins by determining the reasonable hours the prevailing party's attorney spent on the case and multiplying that number by the reasonable hourly rate. (See <i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at pp. 1131-34; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321.) Nonetheless, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (<i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at p. 1132.) Thus, the prevailing defendant in an Anti-SLAPP
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		special motion to strike “bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.” (<i>Computer Xpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020, quoting <i>Hensley v. Eckerhart</i> (1983) 461 U.S. 424, 437.) However, once an attorney has presented evidence of her or his actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable. (<i>Mandel v. Lackner</i> (1979) 92 Cal.App.3d 747, 761.) <u>Reasonable Hourly Rate</u> The reasonable hourly rate is based on the reasonable market value of the attorney’s services. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1094-1095.) This standard applies regardless of how much the attorney actually charged the client. (See <i>ibid.</i>) Thus, the same reasonable hourly rate will apply whether the attorney charged nothing for their services, charged below-market or discounted rates, represented the client on a contingent fee basis, or are in-house counsel paid a fixed salary. To determine the reasonable market value of the legal services provided, the court must look to the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (See <i>Children’s Hospital & Medical Center v. Bonta</i> (2002) 97 Cal.App.4th 740, 783; see also <i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1095 [“[The] reasonable hourly rate is that prevailing in the community for similar work.”].) The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (See <i>Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 155 [finding court erred in reducing rates where evidence of reasonableness of rate requested was undisputed].)
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		"In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41, citations omitted; see also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The value of legal services performed in a case is a matter of which the trial court has its own expertise. (<i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (<i>Ibid.</i>) "It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court." (<i>Melnyk v. Robledo</i> (1976) 64 Cal.App.3d 618, 623.) The court has reviewed and considered the evidence presented by Cross-Defendant Parker, and based on this evidence as well as the court's experience, the court finds the hourly rates billed by Attorneys Tate, Close, and Chamberlin, and Paralegal Saller, are reasonable for legal professionals in the community who conduct litigation of similar type to this case. <u>Hours Reasonably Expended</u> Absent circumstances rendering an award unjust, an award of attorney's fees should ordinarily include compensation for all hours reasonably spent, including those relating solely to obtaining the fee award. (See <i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at p. 1133.) "[A]s the parties seeking fees and costs, defendants 'bear[] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' To that end, the court may require defendants to produce records sufficient to provide 'a proper basis for determining how much time was spent on particular claims.'" (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020, quoting
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		<i>Hensley v. Eckerhart</i> , <i>supra</i>, 461 U.S. at p. 437, fn. 12.) "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (<i>Horsford v Board of Trustees of California State University</i> (2005)132 Cal.App.4th 359, 396; see <i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements."].) Nonetheless "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271-272.) As the Court of Appeal has explained: Although [] billing statements in support of a fee request form the "starting point" for determining the "hours reasonably expended" in a lodestar calculation, the trial court is not bound to accept these hours and may reduce them if it concludes the attorneys performed work unrelated to the anti-SLAPP motion, or represented work that was unnecessary or duplicative or excessive in light of the issues fairly presented. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 441, quoting <i>Christian Research Institute v. Alnor</i>, <i>supra</i>, 165 Cal.App.4th at pp. 1324, 1326.) Thus, the defendant may recover fees and costs "only for the motion to strike, not the entire litigation." (<i>Christian Research Inst. v. Alnor</i>, <i>supra</i>, 165 Cal.App.4th at p. 1320.) As explained by the Court of Appeal: [A] fee award under the anti-SLAPP statute may not include matters unrelated to the anti-SLAPP motion, such as 'attacking service of process, preparing and revising an answer to the complaint, [or] summary judgment research.' . . . Similarly, the fee award should not include fees for 'obtaining
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		the docket at the inception of the case’ or ‘attending the trial court's mandatory case management conference’ because such fees ‘would have been incurred whether or not [the defendant] filed the motion to strike.’ . . . In short, the award of fees is designed to ‘reimburs[e] the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit’ . . .rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit. (569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 433, citations omitted.) In addition, the court need not include inefficient or duplicative efforts. (See <i>Graham v. DaimlerChrysler Corp.</i> (2004) 34 Cal.4th 553, 579-580.) For example, the court may reduce the number of hours based on considerations of “whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.” (<i>Christian Research Institute v. Alnor, supra</i>, 165 Cal.App.4th at p. 1320.) Here, Cross-Defendant Parker submitted the declaration of his counsel summarizing the hours spent relating to the Anti-SLAPP Motion. (Decl. of M. Adam Tate in Supp. of Mot. for Attorneys’ Fees (Tate Decl.), ¶ 4(a)-(e).) The number of attorney’s hours expended by counsel for Cross-Defendant Parker was reasonable, except that counsel included 7 hours of time anticipated to respond to the opposition and to attend the hearing on this matter. Cross-Complainants did not file an opposition nor did Cross-Defendant Parker file a reply. Thus, the court will reduce this time to 1 hour to attend the hearing on this motion. Thus, the reasonable number of hours spent was 19.1 hours for Attorney Tate, 6.4 hours for Attorney Close, 4.8 Hours for Attorney Chamberlin, and 7.4 hours for Paralegal Saller. <u>Partially Successful Anti-SLAPP Motion</u>
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		A moving defendant is entitled to recover attorney's fees and costs only to the extent its anti-SLAPP motion was successful, unless the successful and unsuccessful portions of the motion were so intertwined that it would be impracticable to separate the attorney's time into compensable and noncompensable units. (See <i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 232 [holding that "as a general rule, a defendant who prevails in part in bringing a special motion to strike is entitled to fees and costs, subject to the trial court's determination of the appropriate amount awardable based upon the defendant's partial success"]; <i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 342 [holding apportionment is not required when claims and issues are "so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units."], quoting <i>Bell v. Vista Unified School Dist.</i> (2000) 82 Cal.App.4th 672, 687.) As the Court of Appeal explained: [T]he court should first determine the lodestar amount for the hours expended on the successful claims, and, if the work on the successful and unsuccessful causes of action was overlapping, the court should then consider the defendant's relative success on the motion in achieving his or her objective, and reduce the amount if appropriate. (<i>Mann v. Quality Old Time Service, supra</i>, 139 Cal.App.4th at p. 345.) Courts will consider the following factors in determining whether to award attorney's fees to parties that partially prevailed on an anti-SLAPP motion: (1) "extent to which the defendant's litigation posture was advanced by the motion"; (2) "whether the same factual allegations remain to be litigated"; (3) "whether discovery and motion practice have been narrowed"; and (4) "the extent to which future litigation expenses and strategy were impacted by the motion." (<i>Ibid.</i>) "The fees awarded to a defendant who was only partially successful on an anti-SLAPP motion should be commensurate with the extent to which the motion changed the nature and character of
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		the lawsuit in a practical way. The court should also consider any other applicable relevant factors, such as the experience and abilities of the attorney and the novelty and difficulty of the issues, to adjust the lodestar amount as appropriate.” (<i>Ibid.</i>) The court cautioned that “allowing partially successful defendants to recover virtually all of their fees because the facts and legal theories are so intertwined that they cannot be segregated underestimates the ability of attorneys and experienced trial judges to evaluate the value of legal services associated with limited success” and instead, concluded that “an approach concentrates on the practice impact of a partially successful motion on the overall litigation advances the objectives of the anti-SLAPP statute and minimizes abuses.” (<i>Id.</i> at p. 347.) Cross-Defendant Parker contends that he is entitled to all fees incurred given that Cross-Complainant Album’s dismissal of claims and the allegations stricken by the court were “significant and not trivial.” The dismissal of Cross-Complainant Album’s cross-claims materially advanced Cross-Defendant Parker’s litigation position. This narrowed the scope of discovery and motion practice and reduced the number of factual allegations to be litigated, which in turn, reduced litigation expenses. In addition, the Anti-SLAPP Motion lead to the striking important allegations that supported the breach of fiduciary duty and unfair competition claims, particularly as they related to the trademark registration. This also had a practical effect on the litigation that favored Cross-Defendant Parker. However, the entire 4th Cause of Action for Civil Theft was not stricken. It remains and may involve similar discovery. The court finds that Cross-Defendant Parker is entitled to 85% of the reasonably incurred fees, or \$12,939.55. <u>Costs</u> Generally, the prevailing party is entitled, as a
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		matter of right, to recover costs in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29-30.) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, §§ 1032, subd. (b), 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are "reasonably necessary to the conduct of the litigation" and are "reasonable in amount." (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (See <i>Ladas v. California State Auto. Ass'n</i> (1993) 19 Cal.App.4th 761, 774.) To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) Cross-Defendant Parker seeks costs of \$192.20 for filing and e-filing fees relating to the Anti-SLAPP Motion and this motion. (See Tate Decl. ¶ 5.) These costs appear to be proper on their face and Cross-Complainants do not show that they were not reasonably necessary.
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		The court will award costs of \$192.20. Cross-Defendant Parker shall give notice of this ruling.
8	Selinger vs. American Honda Motor Company, Inc. 30-2023-01348476	<u>Motions to Compel Discovery</u> Pursuant to Defendant American Honda Motor Co., Inc.'s Notice of Withdrawal of Its Four Motions to Compel filed April 8, 2025, (ROA #149), these matters are taken OFF CALENDAR.
9	Toone vs. Kairos Manford Private Equity Fund I LP 30-2023-01357763	<u>Motion to Be Relieved as Counsel</u> Counsel Blank Rome LLP's, Cheryl S. Chang's, and Harrison Brown's Motion to Be Relieved as Counsel for Plaintiff Sheng Zhang is CONTINUED to June 9, 2025 at 9:00 a.m. in Department N15. Counsel Blank Rome LLP, Cheryl S. Chang, and Harrison Brown are ORDERED to file with the court and serve on Plaintiff Sheng Zhang a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), in the manner in Rules of Court rule 3.1362(d), within 30 days of this ruling. <u>Pending Motion</u> Counsel Blank Rome LLP, Cheryl S. Chang, and Harrison Brown (Counsel) move to be relieved as counsel for Plaintiff Sheng Zhang. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).)